

# Grounded Indefinitely

**With only three pilots under its wing, the BSF chopper fleet is mostly used for VIP transportation**

**L**ast month, Minister of State for Home Sriprakash Jaiswal told Parliament of the MHA's ambitious plans to modernise the paramilitary forces which included providing them with 'strategic equipment', state-of-the-art communications and surveillance devices.

Perhaps it was this spirit which spurred his predecessors in the Home Ministry seven years back to give paramilitary forces their own wings and stop their dependence on the IAF. The 11-ton chopper, capable of carrying 30 fully-armed troops, was to be used in internal security duties and for rapidly transporting men and material to the far-flung outposts around the country.

Since their induction in 2003, the BSF choppers have spent more time on the ground than in the air. Five of them are grounded at Delhi's Safdarjung airport because the BSF faces an acute shortage of pilots. While the IAF estimates that

20 pilots are required to keep six choppers airborne, the BSF has only three pilots, including two retired IAF officers. The BSF's first two Mi-17 pilots are training with the IAF but it will be at least two years before they are fully qualified to start flying these machines. Attempts to get Air Force pilots on deputation have failed because the BSF air wing is not seen as a lucrative posting. BSF officials claim that the pilots demand chauffeur-driven cars and accommodation in Delhi. "We cannot force our pilots to join the BSF, it is for them to decide whether they want the deputation," says an IAF official. A sole Mi-17 is used for VIP transportation and anti-naxal operations in Chhattisgarh while BSF, RAF and CRPF personnel still travel by rail or road for internal security duties. The BSF continues to incur an annual maintenance bill worth crores on the grounded choppers.

The MHA has spent Rs 1,292 crore on modernisation in the past three years. It would cost them only a fraction of this to train the pilots and engineers and get the choppers airborne. The ministry is working out a scheme to loan Mi-17s and pilots from the IAF, thereby negating the very reason for starting its nascent air wing.



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writing on behalf of the M/s Rite Approach Group, owned by an Austrian national. It displayed as proof a contract dated April 14, 2000 that it had signed with Rosoboronexport, explicitly stating that it would get 16 per cent commission if the Russian firm bagged the contract. It also enclosed copies of correspondence which the Russian firm had with a Delhi-based businessman—presumably an associate of the Austrians—asking for details on the choppers. When Rosoboronexport refused to pay up, an indignant Rite Approach approached the Delhi High Court charging the Russians with breach of contract.

The Government told the court that the Russians had denied any involvement of agents and followed all the commitments of the contract including non-involvement of agents. In 2003, the Delhi High Court directed the State Bank of India, which was to

## **WHITE ELEPHANTS: Mi-17s stranded in Safdarjung airport**

pay for the choppers, to deduct Rs 29 crore from the Rs 180-crore payment to be made to the Russians. Then, in 2004, the court vacated the stay on the release of funds to Kazan saying it was a company fully owned by the Russian government and there was no dispute about the existence of an agency agreement between the Russian firm and Rite Approach.

The story would have ended then and there, but Jena's PIL changed the entire scenario. "What is shocking is that the Government of India, with full knowledge of the involvement of an agent in a defence deal, has not conducted proper inquiry, not taken appropriate action and proceeded and executed the contract, and released the commission to the Russian manufacturer," says Jena's petition. The court papers reveal that in 2000, the

Austrian agent arranged 14 detailed meetings among the BSF brass, the Home Ministry and the Russians. Jena asks why the Government could not deal directly with the Russian company by cutting out the middlemen.

In response to the PIL, Rite Approach told the Supreme Court that Rosoboronexport violated the agreement and "fraudulently withdrew the entire commission payable" to it for services rendered in clinching the deal for helicopters. It said Kazan had purportedly assured \$6.5 million would be paid by Rosoboronexport to Rite Approach in keeping with the contract between the two dated April 14, 2000.

The Government on its part stated that the purported contract was between Rite Approach and the Russian firm and hence was not involved. However, the stand-off promises to get murkier as more facts emerge. ■